

(37)

Tentative Ruling

Re: **California Department of Public Health v. Prestige Biotech, Inc.**
Superior Court Case No. 24CECG02431

Hearing Date: June 3, 2026 (Dept. 403)

Motion: By Petitioner California Department of Public Health for
Judgment of Condemnation

Tentative Ruling:

To grant. The court shall retain jurisdiction as to the costs of suit and costs of destruction of the embargoed medical devices. Petitioner is to file an amended proposed judgment to address the court's continuing jurisdiction and to amend paragraph four, line 25 to change "111985" to 111895.

Explanation:

The California Department of Public Health seeks a judgment of condemnation and destruction as to embargoed articles pursuant to Health and Safety Code sections 111880, 111885, and 111895. Health and Safety Code¹ section 111880 provides authority for the Department of Public Health to commence proceedings for condemnation of food, drugs, devices, or cosmetics which are adulterated, misbranded, falsely advertised, or where the sale of which is in violation of the Sherman Food, Drug, and Cosmetic Laws. Section 111885 articulates that where the court finds an embargoed item is adulterated or misbranded, then it shall be destroyed at the expense of the claimant or owner. The costs and fees incurred by the department in investigating and prosecuting the action are to be taxed against the claimant or owner or the agent of said claimant or owner. Section 111895 provides for condemnation by the court for devices which fall under the above described provisions. The court finds that the devices at issue were adulterated and misbranded as they were manufactured without a license and not in compliance with good manufacturing practices, are of a lesser quality than represented, and were held under conditions of filth. As such, the court grants an order of condemnation and for destruction of the devices.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 6-2-26.
(Judge's initials) (Date)

¹ All references to code sections are to the Health and Safety Code section unless otherwise stated.

(49)

Tentative Ruling

Re: ***Penaloza v. Brand***
Superior Court Case No. 25CECG05491

Hearing Date: June 3, 2026 (Dept. 403)

Motion: By Defendant Elaine Brand to Quash Summons

Tentative Ruling:

To grant. Plaintiffs are to serve Defendant within 30 days. (Code Civ. Proc., § 415.20, subd. (b).)

Explanation:

Defendant Elaine Brand ("Defendant") moves to quash the summons by Maria Penaloza and Juan Jacobo ("Plaintiffs") due to ineffective service. On April 1, 2026, a proof of service of summons was filed indicating that on May 25, 2026, substitute service was effected on Defendant by a registered process server.

Under Evidence Code section 647, "The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." (Evid. Code, § 647.)

Thus, "'if the notice was served by a registered process server, plaintiff may take advantage of a statutory presumption: The registered process server's proof of service can be introduced as a business record, thereby creating a presumption affecting defendant's burden of producing evidence. [¶] If defendant does not introduce rebuttal evidence, the trier of fact must find for plaintiff in accordance with the presumption. Conversely, the presumption is dispelled by defendant's introduction of rebuttal evidence, and the burden shifts back to plaintiff to put the person who served the notice on the stand to testify to proper service.'" (*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1427, internal citations omitted.)

Here, declaration of the process server in the proof of service is enough to establish a rebuttable presumption that service was completed as described in the declaration.

Defendant contends that substitute service was on a non-resident of the household and the process server failed to explain the documents. (Brand-Konkle Decl., ¶¶ 8-10.) Code of Civil Procedure section 415.20, subdivision (b), requires that the summons be left with "a competent member of the household...who shall be informed of the contents thereof." Defendant's evidence in support of the motion sufficiently challenges the presumption. Plaintiffs in opposition do not submit counter evidence. Accordingly, the motion to quash the summons filed April 1, 2026, is granted.

As Plaintiffs now have contact information for counsel for Defendant, Plaintiffs are to effect service on Defendant within 30 days.

